

A
REMONSTRANCE
OF
THE STATE OF THE
KINGDOM.

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1641.

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REMONSTRANCE OF THE STATE OF THE KINGDOM ***

A
REMONSTRANCE
OF
THE STATE OF THE
KINGDOM.

Die Mercurii 15 Decemb. 1641.

It is this day Resolv'd upon the
Question, By the House of
COMMONS;

That Order shall be now given for the Printing
of this *Remonstrance*, of the State
of the K I N G D O M.

H. Elsinge Cler. Parl. D. Com.

L O N D O N,
Printed for *Ioseph Hunsutt.* 1641.



The Remonstrance.



THE *Commons* in this present Parliament assembled, having with much earnestnesse, and faithfulnessse of affection, and zeal to the publike good of this Kingdom, and His Majesties honour and service for the space of twelve moneths, wrastled with the great dangers and fears, the pressing miseries and calamities, the various distempers and disorders, which had not only assaulted, but even overwhelmed and extinguisht the liberty, peace, and prosperity of this Kingdom, the comfort and hopes of all His Majesties good Subjects, and exceedingly weakned and undermined the foundation and strength of his own royall Throne; do yet finde an abounding malignity, and opposition in those parties and factions, who have been the cause of those evils, and do still labour to cast aspersions, upon that which hath been done, and to raise many difficulties for the hinderance of that which remaines yet undone, and to foment Jealousies betwixt the King and the Parliament; that so they may deprive him and his people of the

fruit of his own gracious intentions, and their humble desires of procuring the publike peace, safety, and happinesse of this Realm. For the preventing of those miserable effects which such malicious endeavors may produce, We have thought good to declare,

1. *The root, and the growth of these mischievous designes.*
2. *The Maturity and ripenesse, to which they have attained before the beginning of the Parliament.*
3. *The effectuall means which have been used for the extirpations of those dangerous evils, and the Progresse which hath therein been made by His Majesties goodnesse, and the wisdom of the Parliament.*
4. *The wayes of obstruction and opposition, by which that Progresse hath been interrupted.*
5. *The courses to be taken for the removing those obstacles, and for the accomplishing of our most dutifull and faithfull intentions, and endeavors, of restoring and establishing the ancient Honour, Greatnesse, and Security of this Crown and Nation. The root of all this mischief We finde to be a malignant and pernicious designe of subverting the Fundamentall Lawes, and principles of Government; upon which the Religion, and Justice of this Kingdom are firmly establisht. The Actors and Promoters hereof have been,*

1. *The Jesuited Papists who hate the Laws, as the Obstacles of that change and Subversion of Religion, which they so much long for.*

2. *The Bishops, and the corrupt part of the Clergie, who cherish formality and superstition, as the naturall effects, and more probable supports of their own Ecclesiasticall Tyranny, and Usurpation.*

3. *Such Councillors and Courtiers, as for private ends have engaged themselves to further the intrests of some forraign Princes or States, to the*

prejudice of His Majesty, and the state at home.

The common Principles by which they moulded and governed all their particular Councells and actions were these.

First, To maintain continuall differences and discontents betwixt the King and the People, upon questions and Prerogative, and liberty, that so they might have the advantage of sideing with him, and under the Notions of Men addicted to his service, gain to themselves and their parties, the places of greatest trust and power in the Kingdom.

A Second, To suppress the purity and power of Religion, and such persons as were best affected to it; as being contrary to their own ends, and the greatest impediment to that change, which they thought to introduce.

A Third, To conjoyn those parties of the Kingdom, which were most propitious to their own ends, and to divide those who were most opposite, which consisted in many particular observations to cherish the Arminian part in those points, wherein they agree with the Papists, to multiply and enlarge the differences betwixt the common Protestants, and those whom they call Puritans, to introduce and countenance such opinions and Ceremonies as are fittest for accommodation with Popery, to encrease and maintain ignorance, loosenesse, and prophanenesse in the people: That of those three parties, Papists, Arminians and Libertines, they might compose a body fit to act such Counsells and resolutions, as were most conducive to their own ends.

A Fourth, To disaffect the King to Parliaments by slanders and false imputations, and by putting him upon other wayes of supply, which in shew and appearance were fuller of advantage, then the ordinary course of Subsidies, though in truth they brought more losse then gain, both to the King and people, and have caused the great distractions, under which we both suffer.

AS in all compounded bodies, the Operations are qualified according to the predominant Element; So in this mixt party, the Jesuited Councells being most active, and prevailing, may easily be discovered to have had the greatest sway in all their determinations, and if they be not prevented, are likely to devour the rest, or to turn them into their own nature.

In the beginning of His Majesties raig, the partie begun to revive and flourish again, having been somewhat damp't by the breach with *Spain* in the last yeer of King *James*, and by His Majesties marriage with *France*; the interests and Councells of that State, being not so contrary to the good of Religion, and the prosperity of this Kingdom, as those of *Spain*, and the Papists of *England* having been ever more addicted to *Spain*, then *France*; Yet they still retained a purpose, and resolution to weaken the Protestant parties in all parts, and even in *France*, whereby to make way for the change of Religion, which they intended at home.

The first effect and evidence of their recovery and strength was, the dissolution of the Parliament at *Oxford*, after there had been given two Subsidies to His Majestie; and before they received relief in any one Grievance, many other more miserable effects followed. The losse of the *Rochel* Fleet, by the help of our Shipping set forth and delivered over to the *French*, in opposition to the advice of Parliament, which left that Town without defence by Sea, and made way not only to the losse of that important place, but likewise to the losse of all the strength and security of the Protestant Religion in *France*. The diverting of His Majesties course of warres from the *West-Indies*, which was the most facile and hopefull way for this Kingdom to prevail against the Spaniard, to an expensfull and successlesse attempt upon *Cales*, which was so ordered, as if it had rather been intended to make us weary of Warre, then to prosper in it. The precipitate breach which *France* by taking their Ships to a great value, without making recompence to the *English*, whose goods were thereupon imbar'd, and confiscate in that Kingdom. The peace with *Spain* without consent of Parliament, contrary to the promise of King *James*, to both

Houses; whereby the *Palatine* cause was deserted and left to chargeable, and hopelesse Treaties, which for the most part were managed by those who might justly be suspected to be no friends to that cause.

The charging of the Kingdom with Billeted Souldiers in all parts of it, and that Concomitant designe of *Germane* horse, that the Land might either submit with fear, or be enforced with rigour to such Arbitrary Contributions, as should be required of them. The dissolving of the Parliament in the second yeer of His Majesties raign, after a Declaration of their intent, to grant five Subsidies.

The exacting of the like proportion of five Subsidies after the Parliament dissolved, by Commission of Loan; and divers Gentlemen and others imprisoned for not yeilding to pay that Loan, whereby many of them contracted such sicknesses, as cost them their lives. Great summes of Money required and raised by Privy Seals. An unjust and pernicious attempt to extort great payments from the subject, by way of *Excise*; and a Commission issued under Seal to that purpose. The Petition of Right, which was granted in full Parliament, blasted with an illegall Declaration, to make it destructive to it self, to the power of Parliament, to the Liberty of the Subject, and to that purpose printed with it; and the Petition made of no use, but to shew the bold and presumptuous injustice of such Ministers as durst break the Laws, and suppress the Liberties of the Kingdom, after they had been so solemnly and evidently declared.

Another Parliament dissolved, 4 *Car.* the priviledge of Parliament broken, by imprisoning divers Members of the House, detaining them close prisoners for many months together, without the liberty of using Books, Pen, Inke, or Paper, denying them all the comforts of life, all means of preservation of health, not permitting their wives to come unto them, even in time of their sicknesse. And for the compleating of that cruelty, after yeers spent in such miserable durance, depriving them of the necessary means of Spirituall consolation, not suffering them to go abroad to enjoy Gods Ordinances, in Gods House, or Gods Ministers to come to them, to administer comfort unto them in their private Chambers: and to keep them still in this oppressed condition, not admitting them to be Bayled according

to Law, yet vexing them with Informations in inferiour Courts, sentencing and fining some of them for matters done in Parliament, and extorting the payments of those Fines from them, enforcing others to put in security of good behaviour, before they could be released.

The imprisonment of the rest which refused to be bound, still continued; which might have been perpetuall, if necessity had not, the last year, brought another Parliament to relieve them; of whom, one died, by the cruelty and harshnesse of his imprisonment, which would admit of no relaxation, notwithstanding the imminent danger of his life, did sufficiently appear by the declaration of his Physitian: And his release, or at least, his refreshment, was sought by many humble Petitions. And his blood still cries either for vengeance, or repentance of those Ministers of State, who at once obstructed the course, both of his Majesties Justice and Mercy.

Upon the dissolution of both these Parliaments, untrue and scandalous declarations published, to asperse their proceedings, and some of their Members, unjustly to make them odious, and colour the violence which was used against them. Proclamations set out to the same purpose; and to the great dejecting of the hearts of the people, forbidding them, even to speak of Parliaments.

After the breach of the Parliament, in the fourth yeer of his Majesty, Injustice, Oppression, and Violence, broke in upon us, without any restraint or moderation; & yet the first project, was the great sums exacted thorow the whole Kingdom, for default of Knight-hood, which seemed to have some colour and shadow of a Law; yet if it be rightly examined by that obsolete Law which was pretended for it, it would be found to be against all the rules of Justice, both in respect of the persons charged, the proportion of the Fines demanded, and the absurd and unreasonable manner of their proceedings.

Tonnage and Poundage hath been received without colour or pretence of Law: Many other heavy impositions continued against Law; and some so unreasonable, that the summe of the charge, exceeds the value of the Goods. The Book of Rates lately inhanced to a high proportion; and such Merchants as would not submit to their illegall and unreasonable payments,

were vexed and oppressed above measure; and the ordinary course of Justice, the common Birth-right of the subject of *England*, wholly obstructed unto them. And although all this was taken upon pretence of guarding the Sea, yet a new and unheard of Tax of Ship-money was devised, upon the same pretence. By both which, there was charged upon the subject neer 700000 l. some yeers; and yet the Merchants have been left so naked to the violence of the Turkish Pyrats, that many great Ships of value, and thousands of his Majesties subjects have been taken by them, and do still remain in miserable slavery.

The enlargement of Forrests, contrary to *Charta de Foresta*, and the composition thereupon. The exactions of Coat and Conduct-money, and divers other Military charges. The taking away the Arms of the Trayned Bands of divers Counties. The desperate design of engrossing all the Gun-powder into one hand, keeping it in the Tower of *London*, and setting so high a Rate upon it, that the poorer sort were not able to buy it, nor could any have it without License; thereby to leave the severall parts of the Kingdom destitute of their necessary defense; and by selling so dear that which was sold, to make an unlawfull advantage of it, to the great charge and detriment of the subject, the generall destruction of the Kings Timber, especially that in the Forrest of *Dean*, sold to Papists, which was the best Store-house of this Kingdom, for the maintenance of our Shipping. The taking away of mens right, under colour of the Kings title to Land between high and low water-Marks. The Monopolies of Sope, Salt, Wine, Leather, Sea-Cole, and, in a manner, of all things of most common and necessary use. The restraint of the Liberties of the subjects in their habitation, Trades, and other Interests. Their vexation and oppression by Purveyors, Clerks of the Market, and Salt-Peeter-men. The sale of pretended Nuzances, as Buildings in and about *London*, conversion of Arable into Pasture; continuance of Pasture, under the name of depopulation, Have drawn many Millions out of the subjects Purses, without any considerable profit to his Majesty. Large quantities of Common, and severall Grounds, have been taken from the subject, by colour of the Statute of Improvement, and by abuse of the Commission of Sewers, without their consent, and against it.

And not onely private Interest, but also publike faith have been broken, in seizing of the money and Bullion in the Mint; and the whole Kingdom like to be robb'd at once, in that abominable project of Brasse Money. Great numbers of his Majesties subjects, for refusing those unlawfull charges, have been vext with long and expensive suits; some fined and censured, others committed to long and hard imprisonments and confinements, to the losse of health of many, of life in some; and others have had their houses broken up, their goods seized; some have been restrained from their lawfull Callings: Ships have been interrupted in their Voyages; surprized at Sea in an Hostile manner, by Projectors, as by a common Enemy: Merchants prohibited to unlade their Goods in such Ports, as were for their own advantage, and forced to bring them to those places which were most for the advantages of the Monopolizers and Projectors.

The Court of Starchamber hath abounded in extravagant Censures, not only for the maintenance and improvement of Monopolies, and other unlawfull taxes; but for divers other Causes, where there hath been no offence, or very small; whereby His Majesties Subjects have been oppressed by grievous Fines, Imprisonments, Stigmatizings, Mutilations, Whippings, Pillories, Gags, Confinements, Banishments; after so rigid a manner, as hath not only deprived Men of the Society of their Friends, exercise of their Professions, comfort of Books, use of Paper or Inke, but even violated that neer Union which God hath establisht betwixt Men and their Wives, by forced and constrained seperation; whereby they have been bereaved of the comfort and conversation one of another, for many yeers together, without hope of relief; if God had not by his over-ruling Providence, given some interruption to the prevailing power and Councill of those, who were the Authors and Promoters of such peremptory and heady courses.

Judges have been put out of their places, for refusing to do against their Oathes, and Consciencs: Others have been so awed, that they durst not do their duties, and the better to hold a rod over them, the Clause *quam diu se bene gesserit* was left out of their Patents, and a new Clause *Durante bene placito* inserted. Lawyers have been checkt, for being faithfull to their

Clients; Sollicitors, and Attorneyes have been threatned, and some punished for following lawfull Suites: And by this means all the approaches to Justice were interrupted and forecluded. New Oaths have been forced upon the Subject against Law; new Judicatories erected without Law: The Councell Table have, by their Orders, offered to binde the Subjects in their free-holds Estates, Suites, and Actions. The pretended Court of the Earl *Marshal* was Arbitrary, and Illegall in its being, and proceedings. The Chancery, Exchequer-Chamber, Court of Wards, and other *English* Courts have been grievous in exceeding their Jurisdiction. The estate of many Families weakned, and some ruined by excessive Fines, exacted from them for Compositions of Wardships. All Leases of above a hundred yeers, made to draw on Wardship contrary to Law. Undue proceedings used in the finding of Offices, to make the Jury finde for the King. The Common-Law Courts, seeing all Men more inclined to seek Justice there, where it may be fitted to their own desire, are known frequently to forsake the Rules of the Common-Law, and straining beyond their bounds, under pretence of equity to do Injustice. Titles of Honour, Judiciall places, Serjeantships at Law, and other Offices have been sold for great summes of Money; whereby the common Justice of the Kingdom hath been much endangered, not only by opening away of employment in places of great Trust, and advantage to Men of weak parts; but also by giving occasion to Bribery, Extortion, Partiality; It seldome hapning that places ill-gotten are well used. Commissions have been granted for examining the excesse of Fees: and when great exactions have been discovered, Compositions have been made with Delinquents, not only for the time past, but likewise for immunity and security in offending, for the time to come; which under colour of remedy, hath but confirmed, and encreased the Grievance to the Subject.

The usuall course of pricking Sheriffs, not observed, but many times Sheriffs made in an extraordinary way; sometimes as a punishment and charge unto them; sometimes such were pricked out, as would be Instruments to execute whatsoever they would have to be done.

The Bishops and the rest of the Clergy, did triumph in the Suspensions, Excommunications, Deprivations, and Degradations of divers painfull, learned, and pious Ministers, in the vexation, and grievous oppression of great numbers of His Majesties good Subjects. The High-Commission grew to such excesse of sharpnesse and severity, as was not much lesse then the Romish Inquisition; and yet in many cases by the Archbishops power, was made much more heavy, being assisted, and strengthened by authority of the Councell-Table.

The Bishops, and their Courts, were as eager in the Countrey; and although their jurisdiction could not reach so high in rigour, and extremity of punishment, yet were they no lesse grievous, in respect of the generallity, and multiplicity of vexations, which lighting upon the meaner sort of Tradesmen, and Artificers, did impoverish many thousands, and so afflict and trouble others, that great numbers, to avoid their miseries, departed out of the Kingdom, some into *New-England*, and other parts of *America*, others into *Holland*, where they have transported their Manufactures of Cloath which is not only a losse by diminishing the present stock of the Kingdome, but a great mischief by impairing and endangering the losse of that peculiar Trade of Cloathing, which hath been a plentiful Fountain of Wealth and Honour to this Nation.

Those were fittest for Ecclesiasticall preferment, and soonest obtained it, who were most officious in promoting superstition, most virulent in railing against Godlinesse, and honesty.

The most publike and solemn Sermons before His Majestie were, either to advance Prerogative above Law, and Decry the propertie of the Subject, or full of such kinde of invectives; whereby they might make those odious, who sought to maintain the Religion, Laws, and Liberties of the Kingdom; and such Men were sure to be weeded out of the Commission of the peace, and out of all other employments of power in the Government of the Countrey.

Many noble Personages were Councillors in name; but the power and authority remained in a few of such, as were most addicted to this partie; whose resolutions, and determinations were brought to the Table, for countenance, and execution, and not for debate, and deliberation; and no Man could offer to appose them without disgrace, and hazard to himself: Nay, all those that did not wholly concurre and actively contribute to the furtherance of their designes, though otherwise, persons of never so great Honour, and Abilities, were so farre from being employed in any place of Trust, and power, that they were neglected, discountenanced, and upon all occasions injured and oppressed.

This Faction was grown to that height, and entirenesse of power, that now they began to think of finishing their Work, which consisted of these three parts.

1.

The Government must be set free from all restraint of Laws concerning our Persons and States.

2.

There must be a Conjunction betwixt Papists and Protestants in Doctrine, Discipline, and Ceremonies; only it must not yet be called Popery.

3.

The Puritans under which name, they include all those that desire to preserve the Laws, and Liberties of the Kingdom, and to maintain Religion in the power of it; must be either rooted out of the Kingdom with force, or driven out with fear. For the effecting of this, It was thought necessary to reduce Scotland to such Popish superstitions, and Innovations, as might make them apt to joyn with England, in that great change which was intended. Whereupon new Canons, and a new Liturgy were prest upon them;

and when they refused to admit of them, an Army was raised to force them to it, towards which the Clergie, and the Papists were very forward in their contribution. The Scots likewise raised an Army for their defence; and when both Armies were come together, and ready for a bloody encounter, His Majesties own Gracious disposition, and the Councell of the English Nobility, and Dutifull submission of the Scots, did so farre prevail against the evil Councell of others, that a Pacification was made, and His Maiesty returned with Peace, and much Honour to London.

The unexpected reconciliation was most acceptable to all the Kingdome, except to the malignant partie, whereof the Archbishop and the Earle of Strafford being heads, they and their faction begun to enveigh against the Peace, and to aggravate the proceeding of the States, which so incensed His Majestie, that he forthwith prepared again for Warre. And such was their confidence, that having corrupted and distempered the whole frame and Government of the Kingdome, they did now hope to corrupt that which was the onely means to restore all to a right frame and Temper again: to which end they perswaded His Majestie to call a Parliament, not to seek Counsell and advice of them, but to draw Countenance and Supply from them, and engage the whole Kingdome in their Quarrell: and in the mean time continued all their unjust Levies of Money, resolving either to make the Parliament pliant to their Will, and to establish mischief by a Law, or else to break it; and with more colour to go on by violence, to take what they could not obtain by consent. The ground alledged for the justification of this Warre was this.

That the undutifull Demands of the Parliaments of *Scotland*, was a sufficient reason for His Maiestie to take Armes against them without hearing the Reason of those Demands, And thereupon a new Armie was prepared against them, their Ships were seized in all Ports, both of *England* and *Ireland*, and at Sea. Their Petitions reiected; their Commissioners refused Audience. This whole Kingdome most miserably distempered with Levies of Men and Money, and Imprisonments of those who denied to submit to those Levies. The Earle of *Strafford* past into *Ireland*, caused the *Parliament* there to declare against the *Scots*, to give foure Subsidies towards that War; and to ingage themselves, their lives and fortunes for the prosecution of it, and gave directions for an Armie of eight thousand foot, and one thousand horse to be levied there, which were for the most part Papists. The *Parliament* met upon the thirteenth of *April*, one thousand six hundred and fourtie. The Earle of *Strafford* and Archbishop of *Canterbury* with their Partie so prevailed with His Maiestie, that the *House of Commons* was prest to yeeld to a Supply for maintenance of the Warre with *Scotland*,

before they had provided any reliefe for the great and pressing Grievances of the people, which being against the fundamentall Priviledge and proceeding of *Parliament*, was yet in humble respect to his Maiestie, so far admitted, as that they agreed to take the matter of Supply into consideration, and two severall dayes it was debated. Twelve Subsidies were demanded for the release of Ship-money alone; A third day was appointed for Conclusion when the Heads of that Partie begun to fear the people might close with the King in satisfying his desire of Money: But that withall they were like to blast their malicious designes against *Scotland*, finding them verie much indisposed to give any countenance to that Warre.

Thereupon they wickedly advised the King to break off the *Parliament*, and to return to the wayes of Confusion, in which their own evill intentions were most like to prosper and succeed.

After the *Parliament* ended the fifth of *May*, one thousand six hundred and fourty, this Partie grew so bold, as to counsell the King to supply Himself out of his Subiects states by his own power, at his own Will, without their consent. The very next day some *Members of both Houses* had their Studies and Cabinets, yea their Pockets searched: Another of them not long after was committed close prisoner for not delivering some Petitions which he received by authoritie of that *House*, and if harsher courses were intended (as was reported) it is very probable that the sicknesse of the Earl of *Strafford* and the Tumultuous rising in *Southwarke*, and about *Lambeth*, were the causes that such violent intentions were not brought to execution. A false and scandalous Declaration against the *House of Commons* was published, in his Maiesties Name, which yet wrought little effect with the people, but onely to manifest the impudence of those who were Authors of it.

A forced Loan of Money was attempted in the Citie of *London*.

The Lord Major and Aldermen in their severall Wards enioyned to bring in a list of the Names of such persons as they iudged fit to lend, and of the

summe they should lend. And such Aldermen as refused so to do were committed to prison.

The *Archbishop* and the other *Bishops* and *Clergie* continued the *Convocation*, and by a new Commission turned it to a *Provinciall Synod*, in which by an unheard of presumption, they made *Canons* that contain in them many matters contrarie to the Kings Prerogative, to the fundamentall Laws and Statutes of the Realm, to the right of *Parliaments*, to the Propertie and Libertie of the Subiect, and matters tending to sedition and of dangerous consequence, thereby establishing their own Vsurpations, justifying their Altar-worship, and those other superstitious Innovations which they formerly introduced, without warrant of Law.

They imposed a new Oath upon divers of his Maiesties Subiects, both *Ecclesiasticall* and *Lay*, for maintenance of their own Tyrannie, and laid a great Tax upon the Clergy for supply of his Maiestie; and generally they shewed themselves very affectionate to the Warre with *Scotland*, which was by some of them stiled *Bellum Episcopale*, and a prayer composed, and enioyned to be read in all Churches, calling the *Scots, Rebels*, to put the two Nations into blood, and make them irreconcilable. All those pretended *Canons* and *Constitutions* were armed with the severall Censures of *Suspension, Excommunication, Deprivation*, by which they would have thrust out all the good Ministers, and most of the well affected people of the Kingdome, and left an easie passage to their own Designe of Reconciliation with *Rome*. The *Popish* party enioyned such Exemptions from the *Penall Laws* as amounted to a Tolleration, besides many other encouragements, and Court favours: They had a Secretarie of State, S^{ir}. *Francis Windibank*, a powerfull Agent for the speeding of all their desires, a *Popes Nuntio* residing here to act and govern them according to such influences as he received from *Rome*, and to intercede for them with the most powerfull concurrence of the forraigne Princes of that religion: By his authoritie the *Papists* of all sorts, Nobility, Gentry, and Clergie were convocated, after the manner of a *Parliament*, new Iurisdictions were erected of *Romish Archbishops*, Taxes levied, another State moulded within this State independant in Government, contrary in interest and affection, secretly corrupting the Ignorant, or negligent professors of our Religion, and closely uniting and combining themselves against such as were sound, in this posture waiting for an opportunitie by force to destroy those whom they could not hope to seduce. For the effecting whereof, they were strengthened with Armes and Munition, encouraged by superstitious Prayers enioyned by the *Nuntio* to be weekly made for the prosperitie of some great designe. And such power had they at Court, that secretly a Commission was issued out, intended to be issued to some great Men of that profession for the levying of Souldiers, and to command and employ them according to private Instructions, which we doubt were framed for the advantage of

those who were the contrivers of them: His Maiesties Treasure was consumed, his Revenew anticipated, His Servants and Officers compelled to lend great summes of Money; Multitudes were called to the *Councell Table*, who were tired with long attendances there, for refusing illegall payments. The *Prisons* were filled with their Commitments; many of the Sheriffes summoned into the *Starre Chamber*, and some imprisoned for not being quicke enough in levying the Ship-money, the people languished under grief, and fear, no visible hope being left, but in desperation. The Nobility began to be wearie of their silence, and patience, and sensible of the dutie and Trust which belongs to them: and thereupon some of the most eminent of them did petition His Maiesty at such a time when evil Councels were so strong that they had reason to expect more hazard to themselves, then redresse of those publike evils for which they interceded, whilst the Kingdome was in this Agitation and distemper, the *Scots* restrained in their Trades, impoverished by the losse of many of their Ships, bereaved of all possibility of satisfying His Majestie by any naked Supplication, entred with a powerfull Army into the Kingdome, and without any hostile Act or spoil in the Countrey as they passed, more then forcing a passage over the *Tyne* at *Newborne*, neer *Newcastle*, possessed themselves of *Newcastle*, and had a fair opportunitie to presse on further upon the Kings Armie: but dutie and Reverence to his Majestie, and brotherly love to the *English* Nation, made them stay there, whereby the King had leasure to entertain better Councels, wherein God so blessed and directed him, that he summoned the great Councell of Peers to meet at *Yorke*, upon the twentie fourth of September, and there declared a Parliament to begin the third of Novemb. then following. The Scots the first day of the great Councell, presented an humble Petition to His Majestie, whereupon the Treatie was appointed at *Rippon*. A present Cessation of armes agreed upon: and the full Conclusion of all differences referred to the wisdom and care of the Parliament. At our first meeting all Oppositions seemed to vanish, the mischieves were so evident, which those evil Councillors produced, that no Man durst stand up to defend them. Yet the work it self afforded difficultie enough. The multiplied evils and corruption of sixteen yeers strengthened by custome

and authoritie, and the concurrent interest of many powerfull delinquents were now to be brought to iudgement and Reformation. The Kings Houshold was to be provided for, they had brought him to that want, that he could not supply His Ordinarie, and necessarie expences, without the assistance of his people. Two Armies were to be paied, which amounted very neer to 80. thousand pounds a moneth; the people were to be tenderly charged, having been formerly exhausted with many burthensome Proiects. The difficulties seemed to be insuperable, which by the Divine Providence we have overcome. The Contrarieties incompatible, which yet in a great measure we have reconciled. Six Subsidies have been granted, and a Bill of Poll-money, which if it be duely levied, may equall six Subsidies more in all: Six hundred thousand pounds. Besides we have contracted a Debt to the Scots of 220. thousand pounds; and yet God hath so blessed the endeavours of this Parliament, that the Kingdom is a great gainer by all these charges. The Ship-money is abolished, which cost the Kingdome above 200. thousand pounds a yeer. The Coat and Conduct money, and other militarie charges, are taken away, which in many Countreys amounted to little lesse then the Ship-money. The Monopolies are all suppress, whereof some few did preiudice the Subiect, above a Million yearly. The Soape an hundred thousand pounds; the Wine three hundred thousand pounds; the Leather must needs exceed both: and Salt could be no lesse then that, besides the inferiour Monopolies, which if they could be exactly computed, would make up a great summe. That which is more beneficiall then all this is, that the root of these evils is taken away, which was the arbitrarie power pretended to be in his Maiestie, of taxing the Subiect, or charging their estates without consent in Parliament, which is now declared to be against Law by the iudgement of both Houses, and likewise by an Act of Parliament. Another step of great advantage is this: the living Grievances, the evil Councillors and actors of these mischiefs have been so quelled, by the justice done upon the Earl of Strafford, the flight of the Lord *Finch*, and Secretarie *Windibank*. The accusation and imprisonment of the Archbishop of Canterbury, of Iudge *Bartlet*, and the impeachment of divers other Bishops and Iudges, that it is like not onely to be an ease to the present

times, but a preservation to the future. The discontinuance of Parliaments is prevented by the Bill for a Trienniall Parliament, and the abrupt dissolution of this Parliament by another Bill; by which it is provided it shall not be dissolved or adiourned without the consent of both Houses. Which two Laws well considered, may be thought more advantagious then all the former, because they secure a full operation of the present remedie, and afford a perpetuall Spring of remedies for the future: The Star-Chamber, the High Commission, the Courts of the President, and Councill in the North, were so many forges of miserie, oppression, and violence, and are all taken away, whereby men are more secured in their persons, liberties, and estates, then they could be by any Law or Example for the regulation of those Courts, or Terror of the Iudges; The immoderate power of the *Councell Table*, and the excessive abuse of that power is so ordered and restrained, that we may well hope that no such things as were frequently done by them, to the prejudice of the publique libertie, will appear in future times but onely in Stories, to give us and our posteritie more occasion to praise God for His Maiesties goodnesse, and the faithfull endeavours of this *Parliament*. The *Canons*, and the power of *Canon* making, are blasted by the Vote of both *Houses*. The exorbitant power of *Bishops*, and their Courts, are much abated, by some Provisions in the Bill against the *High Commission Court*. The authors of the many innovations in Doctrine and Ceremonies; The Ministers that have been scandalous in their lives, have been so terrified in iust complaints and accusations, that we may well hope they will be more modest for the time to come; either inwardly convicted by the sight of their own folly, or outwardly restrained by the fear of punishment. The *Forrests* are by a good Law reduced to their right bounds; The encroachments and oppressions of the *Stannarie Courts*; The Extortions of the Clerk of the Market, and the Compulsion of the Subiect to receive the Order of Knighthood against his will, paying of Fines for not receiving it, and the vexatious proceedings thereupon for levying of those Fines, are by other beneficiall Laws reformed and prevented. Many excellent Laws and provisions are in preparation for removing the inordinate power, vexation, and usurpation of *Bishops*, for reforming the

pride and Idlenesse of many of the Clergie, for easing the people of unnecessarie Ceremonies in Religion, for censuring and removing unworthy and unprofitable Ministers; and for maintaining godly and diligent Preachers through the Kingdome: Other things of many importance for the good of this Kingdome, are in proposition, though little could hitherto be done, in regard of the many other more pressing businesses, which yet before the end of this Session, we hope may receive some progresse and perfection. The establishing and ordering the Kings Revenue, that so the abuse of Officers, and superfluity of expences may be cut off, and the necessarie disbursments for his Majesties Honor, the defence and government of the Kingdome, may be more certainly provided for. The regulating of Courts of Iustice, and abridging both the delays and charges of Law Suits; The setting of some good courses for preventing the exportation of Gold and Silver, and the inequality of exchanges betwixt us and other Nations, for the advancing of native Commodities, increase of our Manufactures, and well ballancing of Trade, whereby the Stock of the Kingdome may be increased, or at least kept from impairing, as through neglect hereof it hath done for many yeers last past; For improving the Herring fishing, upon our own Coasts, which will be of mightie use in the imployment of the poore, and a plentifull Nurserie of Mariners for inabling the Kingdome in any great Action. The oppositions, obstructions; and other Difficulties wherewith we have been encountred, and which still lye in our way with some strength and much obstinacie are these: The malignant Partie whom we have formerly described, to be the Actors and promoters of all our miserie, they have taken heart again; They have been able to preferre some of their own Factors and Agents to degrees of honour, to places of Trust and imployment even during the *Parliament*. They have endeavoured to work in His Maiestie ill impressions and opinions of Our proceedings, as if we had altogether done our own work, and not His, and had obtained from him many things very preiudiciall to the Crown, both in respect of Prerogative and Profit. To wipe out this slander, We think good onely to say thus much: That all that We have done, is for His Maiestie, His greatnesse, Honor, and support, when We yeilded to give 25000. l. a moneth for the

relief of the Northerne Countreys, this was given to the King, for he was bound to protect his subiects, they were his Maiesties evill Counsellors, and their ill instruments that were actors in those grievances which brought in the Scots: and if his Majesty please to force those who were the authors of this warre to make satisfaction, as he might justly and easily doe, it seemes very reasonable that the people might well be excused from taking upon them this burthen, being altogether innocent, and free from being any causes of it.

When we undertooke the charge of the army, which cost above 50000. pound a moneth, was not this given to the King? was it not his Majesties army? were not all the Commanders under contract with his Majesty at higher rates and greater wages then ordinary? and have not we taken upon us to discharge all the brotherly assistance of three hundred thousand pounds which we gave the Scots? was it not toward repaire of those dammages and losses which they received from the Kings ships, and from his ministers? These three particulars amount to above 1100. thousand pound, besides his Majesty hath received by impositions upon merchandise at least 400. thousand pounds; so that his Majesty hath had out of the subjects purse since the Parliament began, one million and halfe, and yet these men can be so impudent, as to tell his Majesty, that we have done nothing for him. As to the second branch of this slander, we acknowledge with much thankfulness that his Majesty hath passed more good Bills to the advantage of the subjects then hath been in many ages; but withall we cannot forget, that these venomous counsels did manifest themselves in some endeavours to hinder these good Acts: And for both Houses of Parliament wee may with truth and modesty say thus much, That we have ever been carefull not to desire any thing that should weaken the Crowne either in just profit or usefull power. The trienniall Parliament, for the matter of it, doth not extend to so much as by Law we ought to have required, there being two Statutes still in force for a Parliament to be once a yeere, and for the manner of it, it is in the Kings power, that it shall never take effect, if he by a timely summons shall prevent any other way of assembling. In the Bill for continuance of this present Parliament, there

seemes to be some restraint of the royall power in dissolving of Parliaments, not to take it out of the Crowne, but to suspend the execution of it for this time and occasion onely, which was so necessary for the Kings owne security, and the publique peace, that without it wee could not have undertaken any of these great charges, but must have left both the armies to disorder and confusion, and the whole Kingdome to blood and rapin. The Starchamber was much more fruitfull in oppression then in profit, the great fines being for the most part given away, and the rest stalled at long times. The fines of the high Commission were in themselves unjust and seldome or never came into the Kings purse. These foure Bills are particularly and more specially instanced, in the rest, there will not be found so much as a shadow of prejudice to the Crowne. They have sought to diminish our reputation with the people, and to bring them out of love with Parliaments: the aspersions which they have attempted this way, have beene such as these, That we have spent much time and done little, especially in those grievances which concerne Religion. That the Parliament is a burden to the Kingdome by the abundance of Protections which hinder Justice and Trade, and by many Subsidies granted much more heavy then any they formerly endured; to which there is a ready answer: If the time spent in this Parliament be considered in relation backward to the long growth and deep roote of those grievances, which wee have removed, to the powerfull supports of those delinquents which wee have pursued, to the great necessities and other charges of the Common wealth for which we have provided: or if it be considered in relation forward to many advantages, which not onely the present but future ages are like to reape by the good lawes and other proceedings in this Parliament, we doubt not but it will be thought by all indifferent judgments that our time hath beene much better employed then in a farre greater proportion of time in many former Parliaments put together; and the charges which have beene laid upon the Subjects, and the other inconveniences which they have borne will seeme very light in respect of the benefit they have and may receive. And for the matter of Protections, the Parliament is so sensible of it, that therein they intend to give them whatsoever ease may stand with Honour and Justice;

and are in a way of passing a Bill to give them satisfaction. They have sought by many subtile practices, to cause jealousies and divisions betwixt us and our brethren of *Scotland*, by slandering their proceedings and intentions towards us, and by secret endeavours to instigate and incense them and us one against another. They have had such a party of Bishops and popish Lords in the House of Peeres, as hath caused much opposition and delay in the prosecution of delinquents, hindred the proceedings of divers good Bills passed in the Commons House, concerning the reformation of sundry great abuses and corruptions both in Church and State. They have laboured to seduce and corrupt some of the Commons House, to draw them into Conspiracies and Combinations against the libertie of the Parliament: And by their instruments and agents they have attempted to disaffect and discontent his Majesties Army, and to ingage it for the maintenance of their wicked and trayterous designes, the keeping up of Bishops in their Votes and functions, and by force to compell the Parliament to order, limit, and dispose their proceedings in such manner as might best concur with the intentions of this dangerous and potent faction: And when one mischievous designe, and attempt of theirs to bring on the Army against the Parliament, and the City of *London* had been discovered and prevented, they presently undertooke another of the same damnable nature, with this addition to it, to endeavour to make the Scottish Army neutrall, whilst the English Army which they had laboured to corrupt and invenome against us by their false and slanderous suggestions should execute their malice to the subversion of our Religion and the dissolution of our government. Thus they have beene continually practizing to disturbe the peace, and plotting the destruction even of all the Kings Dominions, and have employed their emissaries and agents in them all for the promoting of their divellish designes which the vigilancie of those who were well affected hath still discovered and defeated before they were ripe for execution in *England* and *Scotland*: only in *Ireland* which was farther off, they have had time and opportunity to mould and prepare their worke, and had brought it to that perfection that they had possessed themselves of that whole Kingdome, totally subverted the government of it, rooted out Religion, and destroyed all the protestants

whom the conscience of their duty to God, their King and Countrey would not have permitted to joyne with them, if by Gods wonderfull providence their maine enterprize upon the City and Castell of *Dublin* had not beene detected and prevented upon the very eave before it should have beene executed. Notwithstanding they have in other parts of that Kingdome broken out into open rebellion, surprised Townes and Castles, committed murders, rapes, and other villanies; and shaken off all bonds of obedience to his Majesty, and the lawes of the Realme; and in generall have kindled such a fire, as nothing but Gods infinite blessing upon the wisdom and endeavours of this State will be able to quench it: and certainly had not God in his great mercy unto this Land discovered and confounded their former designes, we had been the Prologue to this Tragedy in *Ireland*, and had by this time been made the lamentable spectacle of misery and confusion. And now what hope have we but in God, when as the onely means of our subsistence, and power of reformation is under him, in the Parliament; but what can we the Commons without the conjunction of the House of Lords, and what conjunction can wee expect there, when the Bishops and Recusant Lords are so numerous and prevalent, that they are able to crosse and interrupt our best endeavours for reformation, and by that meanes give advantage to this malignant party to traduce our proceedings. They infuse into the people, that we meane to abolish all Church government, and leave every man to his owne fancy for the service and worship of God, absolving him of that obedience which he owes under God unto his Majesty whom wee know to be intrusted with the ecclesiasticall law as well as with the temporall to regulate all the members of the Church of *England* by such rules of order and discipline as are established by parliament which is his great Councell, in all affaires both in Church and State. We confesse our intention is and our endeavours have been to reduce within bounds that exorbitant power which the prelates have assumed unto themselves so contrary both to the Word of God, and to the Laws of the Land, to which end wee past the Bill for the removing them from their temporall power, and imployments, that so the better they might with

meekenesse apply themselves to the discharge of their functions, which Bill themselves opposed, and were the principall instruments of crossing it.

And we do here declare, that it is farre from our purpose or desire to let loose the golden reynes of discipline, and government in the Church, to leave private persons or particular Congregations to take up what forme of divine Service they please; for we hold it requisite that their should be throughout the whole Realme a conformity to that Order which the Lawes enjoyne, according to the Word of God: and we desire to unburthen the consciences of men of needlesse and superstitious ceremonies, suppress innovations, and take away the monuments of Idolatry. And the better to effect the intended reformation we desire there may be a generall Synod of the most grave, pious, learned, and judicious Divines of this Island, assisted with some from forraine parts professing the same Religion with us, who may consider of all things necessary for the peace & good government of the Church, and represent the results of their consultations unto the Parliament to be there allowed of and confirmed, and receive the stamp of authority thereby to finde passage and obedience throughout the Kingdome. They have maliciously charged us that wee intend to destroy and discourage learning, whereas it is our chieftest care and desire to advance it and to provide a competent maintenance for conscionable and preaching Ministers throughout the Kingdome, which will be a great encouragement to Schollers, and a certaine means whereby the want, meanesse, and ignorance to which a great part of the Clergy is now subject, will be prevented. And wee intend likewise to reforme, and purge the fountaines of learning the two Universities, that the streames flowing from thence may be cleere and pure, and an honour and comfort to the whole Land. They have strayned to blast our proceedings in Parliament by wresting the interpretations of our Orders from their genuine intention. They tell the people that our meddling with the power of Episcopacy, hath caused sectaries and conventicles, when idolatry and popish ceremonies introduced in the Church by the command of the Bishops have not onely debarred the people from thence, but expelled them from the Kingdome. Thus with *Eliah* we are called by this malignant party the troublers of the State, and still while we endeavour to reforme

their abuses, they make us the authours of those mischiefes we study to prevent: for the perfecting of the worke begun and removing all future impediments, we conceive these courses will be very effectuall, seeing the religion of the Papists, hath such principals as doe certainly tend to the destruction and extirpation of all Protestants when they shall have opportunity to effect it.

It is necessary in the first place to keep them in such a condition, as that they may not be able to do us any hurt, and for avoyding of such connivence and favour as hath heretofore been shewed unto them, That his Majesty be pleased to grant a standing Commission to some choice men named in Parliament, who may take notice of their encrease, their counsels and proceedings, and use all due meanes by execution of the Lawes to prevent all mischievous designs, against the peace and safety of this Kingdome. That some good course be taken to discover the counterfeit and false conformity of Papists to the Church by colour whereof persons very much disaffected to the true religion have beene admitted into place of greatest authority and trust in the Kingdome.

For the better preservation of the Lawes and liberties of the Kingdome, that all illegall grievances and exactions be presented, and punished at the Sessions, and Assizes: and that Judges and Justices be very carefull to give this in charge to the grand Jury, and both the Sheriffe and Justices to be sworne to the due execution of the petition of right and other Lawes: That his Majesty be humbly petitioned by both houses to employ such Counsellours, Ambassadors, and other Ministers in mannaging his businesse at home and abroad, as the Parliament may have cause to confide in, without which wee cannot give his Majesty such supplies for support of his owne estate, nor such assistance to the protestant party beyond the Sea, as is desired. It may often fall out that the Commons may have just cause to take exceptions at some men for being Counsellors, and yet not charge those men with crimes, for there be grounds of diffidence which lie not in prooffe: there are others which though they may be proved yet are not legally criminall, to be a knowne favourer of papists, or to have beene very forward in defending or countenancing some great offenders questioned in

Parliament, or to speake contemptuously of either Houses of Parliament, or Parliamentary proceedings, or such as are factours or agents for any forraine Prince of another Religion, such are justly suspect to get Counsellors places or any other of trust concerning publique imployment for money: For all these and divers others wee may have great reason to be earnest with his Majesty not to put his great affaires into such hands, though we may be unwilling to proceed against them in any legall way of charge or impeachment: that all Counsellors of State may be sworn to observe those Lawes which concerne the Subject in his libertie, that they may likewise take an oath not to receive or give reward or pension from any forraine Prince, but such as they shall within some reasonable time discover to the Lords of his Majesties Councell: and although they should wickedly forswear themselves, yet it may herein doe good to make them knowne to be false and perjured to those who imploy them, and thereby bring them into as little credit with them as with us. That his Majesty may have cause to be in love with good Counsel and good men, by shewing him in an humble and dutifull manner, how full of advantage it would be to himselfe, to see his owne estate settled in a plentiful condition to support his honour, to see his people united in waies of duty to him, and endeavours of the publique good; to see happinesse, wealth, peace and safety derived to his owne Kingdome, and procured to his Allies by the influence of his owne power and government. That all good courses may be taken to unite the two Kingdomes of *England* and *Scotland* to be mutually ayding and assisting of one another for the common good of the Island, and honour of both. To take away all differences amongst our selves for matters indifferent in their owne nature concerning Religion; and to unite our selves against the common enemies which are the better enabled by our divisions to destroy us all, as they hope and have often endeavoured. To labour by all offices of friendship to unite the forrain Churches with us in the same cause, and to seeke their liberty, safety, and prosperity, as bound thereunto both by charity to them, and by wisdom for our owne good. For by this meanes our owne strength shall be encreased, and by a mutuall concurrence to the same common end, we shall be enabled to procure the good of the whole body of

the Protestant profession. If these things may be observed, wee doubt not but God will crowne this Parliament with such successe as shall be the beginning, and foundation of more honour and happinesse to his Majesty, then ever yet was enjoyed by any of his Royall Predecessors.

FINIS.

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Archaic and inconsistent spelling and punctuation has been reproduced as printed.

Illegible or unclear letters have been imputed to form the word expected in the context.

In the original work, the page numeral 12 appears twice, on the pages shown here as [11](#) and [12](#). The page numeral 52 appears twice, on the pages shown here as [52](#) and [54](#); and the page numeral 53 appears twice, on the pages shown here as [53](#) and [55](#).

The following changes have been made to the text as printed:

1. Page [33](#): *whereupou* has been changed to *whereupon*.

2. Page [37](#): *wher-by* hyphenated across a line break has been rendered as *whereby*.
3. Page [37](#): A full stop has been inserted after *Vote of both Houses*.
4. Page [39](#): *ex-exchanges* hyphenated across a line break has been rendered as *exchanges*.

*** END OF THE PROJECT GUTENBERG EBOOK A
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